

The Prevention Of Cruelty To Animals (Licensing Of Farriers) Rules, 1965

Source: <https://indiankanoon.org/doc/170177246/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Prevention Of Cruelty To Animals (Licensing Of Farriers) Rules, 1965

UNION OF INDIA

India

The Prevention Of Cruelty To Animals (Licensing Of Farriers) Rules, 1965

Rule THE-PREVENTION-OF-CRUELTY-TO-ANIMALS-LICENSING-OF-FARRIERS-RULES-1965 of 1965

Published on 23 March 1965

Commenced on 23 March 1965

[This is the version of this document from 23 March 1965.]

[Note: The original publication document is not available and this content could not be verified.]

The Prevention Of Cruelty To Animals (Licensing Of Farriers) Rules, 1965

Published vide Government of India, Ministry of Food and Agriculture, Notification No. 9-18/62-LD, dated 23.3.1965.

19.

/883

In exercise of the powers conferred by clause (f) of sub-section (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of that section, namely:--

1.

Short title and commencement .-(1) These rules may be called The Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965.

(2)

They shall come into force in any State on such date as the State Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different areas of the State.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,--

(a)

"cattle" means buffaloes, bullocks, horses, mules or donkeys and includes other animals used for draught, pack or carriage purpose, which require shoeing;

(b)

"farrier" means a person who carries on the business of shoeing cattle;

(c)

"license" means a license granted under these rules;

(d)

"licensing authority" means such officer of the veterinary department of the State or a local authority or any organisation for the welfare of animals as the State Government may, by general or special order, specify in this behalf.

3.

Farriers to be licensed .-No person shall, after the commencement of these rules, begin to carry on the business of a farrier, and no person carrying on the business of a farrier at the commencement of these rules, shall, after the expiration of three months from such commencement, continue to carry on such business, except under a license.

4.

Persons entitled to apply for license .-Every person who--

(i)

has completed the age of eighteen years, and

(ii)

has undergone any such training in the business of shoeing cattle as may be approved by the licensing authority, or

(iii)

has been carrying on the business of a farrier for not less than two years before the commencement of these rules, shall be entitled to a license.

5.

Application for license .-Every person who at the commencement of these rules is carrying on the business of a farrier and who intends to carry on such business after such commencement and every person who intends to begin such business after such commencement shall apply in writing to the licensing authority for a license giving his name, place of residence, place of business, his qualifications for the license and such other particulars as the licensing authority may require.

6.

Grant of license .-The licensing authority shall after satisfying himself as to whether the applicant is a fit and proper person to be granted a license and whether he has equipped himself or has made arrangements for equipping himself with proper tools and other implements for the purpose of his business, grant to every applicant who is duly qualified in this behalf a license in the form prescribed in the Annexure to these rules.

Explanation.-The tools and other implements which a person carrying on or intending to carry on the business of a farrier shall ordinarily have in his possession the following, namely:--

1. Driving hammer with claws 8. Chisel for cutting bar iron

2. Hand hammer 9. Punch for making nail holes

3. Drawing knife 10. Nails for shoeing

4. Scorcher knife 11. Twitch

5. Pincers 12. Wooden plank for finishing work

6. Buffer 13. Iron anvil

7.

Rasp 14. Good quality wrought iron for shoes.

7. Term of license and renewal thereof .-(1) A license shall be valid for a period of two years from the date of its grant, but it may be renewed from time to time on application made by the licensee stating the period from which the license is to be renewed:

Provided that no license shall be renewed for a period exceeding two years at a time.

(2)

The renewal of a license shall be made by inscribing, in the columns provided for the purpose in the license, the date of renewal, the date of expiry of the renewed license and the signature of the licensing authority.

8.

Issue of duplicate license .-If a license is defaced, lost or destroyed, the licensing authority may after making such inquiry into the matter as he thinks fit, issue a duplicate license.

9.

Farriers to exercise reasonable care and skill .-Every licensee under these rules shall exercise a reasonable degree of care and skill in the shoeing of cattle.

10.

Cancellation of license .-(1) It shall be lawful for the licensing authority to enter the place of business of any licensee during normal working hours for the purpose of inspection; and if, in the opinion of the licensing authority the licensee is unable to exercise a reasonable degree of care and skill in the shoeing of cattle or is not properly equipped for the purposes of his business, he may, after giving the licensee a reasonable opportunity of being heard, cancel the license.

(2)

A license may also be cancelled if the licensing authority is satisfied, after giving the licensee a reasonable opportunity of being heard, that there has been a breach of any of the conditions of the license.

[10-A. An appeal shall lie from any order refusing or cancelling in license under these rules to such authority as the State Government may, by notification in the Official Gazette, specify for the purpose.]

11.

Issue of fresh license after cancellation .-A person whose license has been cancelled under rule 10 may be granted a fresh license on application made in this behalf if the licensing authority is satisfied that having regard to the circumstances obtaining at the time of such application, there is no reason why the applicant should not be granted a fresh license.

12.

Fees .-(1) The fees payable on every application for a license shall be one rupee and that on every application for renewal of the license or for a duplicate thereof shall be fifty paise.

(2)

Such fees may be paid either in cash or by affixing non-judicial stamps of equivalent value to the application.

13.

Maintenance of register .-The licensing authority shall maintain a register containing full particulars relating to every license.

FARRIER'S LICENSE

License No.....

1. Name of license

2. Place of residence and full postal address

3. Duration of license

From.....to.....

CONDITIONS OF LICENSE

(1)

This license is valid for two years only from the date of its grant, unless renewed, on application made under rule 7 of the Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965, within one month before the date of expiry of the original or earlier license">(1) This license is valid for two years only from the date of its grant, unless renewed, on application made under rule 7 of the Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965, within one month before the date of expiry of the original or earlier license.

(2)

[During the continuance of the license, the licensee shall be bound to produce for inspection during normal working hours and at his place of business all the tools and other implements in his possession and kept for the purpose of his business if a demand for the production of the same is made by the licensing authority.]

(3)

The licensee shall afford all reasonable facilities for the purpose of enabling the licensing authority to inspect the place of business of the licensee and the manner in which he is carrying on his business.

RENEWAL ENDORSEMENT

Date of Renewal

Date of Expiry

Signature of licensing authority

Remarks

(1)

(2)

(3)

(4)

Related AI tags, queries and research notes

Translation